

[Return to Order of Business](#)

1

TAB 1



Board of Education Report

File #: Rep-238-23/24, **Version:** 1

District's Initial Bargaining Proposals for Successor Agreements Commencing July 1, 2024 for AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J and S

April 9, 2024

Office of Labor Relations

Action Proposed:

Adoption of the District's Initial Bargaining Proposals for the 2024-2029 Successor Agreements with AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J, and S (Attachment A).

Background:

Pursuant to Government Code Section 3547, Board Guidelines, and BUL-6117.0 (Public Notice of Negotiations Proposals - Implementation of Educational Employment Relations Act: Government Code Section 3547), the District's Initial Proposals shall be submitted to the Board of Education in sufficient time for such proposals to be included in the Board Meeting Order of Business and Board Meeting materials packet which are made available to the public at least 72 hours prior to the meeting to which they pertain. The initial proposals shall, in addition to other regular modes of distribution, be available on the District's website at least 72 hours prior to such meeting.

Expected Outcomes:

Adoption of the District's Initial Proposals for Agreements with AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J, and S.

Board Options and Consequences:

The Board may adopt the District's Initial Proposals for the 2024-2029 Successor Agreements with AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J, and S, or reject the proposals and direct staff to draft a new District initial bargaining proposal. Negotiations may not proceed with the unions without a District initial bargaining proposal.

Policy Implications:

Any policy implications associated with the eventual outcome of the negotiations process with each bargaining unit will be reflected in later Board Reports.

Budget Impact:

Any budget implications associated with the eventual outcome of the negotiations process with each bargaining unit will be reflected in later Board Reports.

Student Impact:

The proposed initial bargaining proposals will assist the District in attaining its goals for students by providing competitive compensation to attract and retain the highest quality employees. It also incentivizes employees to attain higher levels of competency and certification to better serve our students.

File #: Rep-238-23/24, **Version:** 1

Equity Impact:

Not applicable.

Issues and Analysis:

No legal issues.

Attachments:

Attachment A - District Initial Bargaining Proposals for Successor Agreements Commencing July 1, 2024 for AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J, and S.

Informatives:

Not Applicable.

Submitted:

03/12/2024

File #: Rep-238-23/24, Version: 1

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


KRISTEN K. MURPHY, Ed. D.
Chief of Staff

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

District's Proposed Initial Bargaining Proposals for Successor Agreements Commencing
July 1, 2024

For AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J and S

The District provides the following initial proposals for the respective successor cycles and any applicable reopener negotiations for Units A, B, C, D, E, F, G, H, J, S, AALA, UTLA and Health Benefits Committee. These initial proposals have been developed through a lens focused on equity and student achievement, and are aligned to and reference specific priorities identified in the LAUSD 2022-2026 Strategic Plan (listed at the end of this document). All proposals are in furtherance of Los Angeles Unified's goals of being the District of Choice for students and families and the Employer of Choice for our workforce.

I. Compensation (All Units, as appropriate)

- A. The Board of Education and the Superintendent believe that negotiations over economic issues, including salary and health benefits, must take into account:
 - 1. Impact of every dollar spent on student outcomes, equity, and closing of achievement and opportunity gaps. (Priorities 4C, 4D)
 - 2. Realities of both state and local economies, including the impacts of declining enrollment and the negotiated Agreements on health and welfare and District retirement (OPEB) obligations. (Priority 4C)
 - 3. The District's ability to pay now and in the future, as required by the law regulating public schools (Educational Employee Relations Act). (Priority 4C)
 - 4. The fact that our ability to support the Board Vision, District Mission, Guiding Principles and Strategic Plan depends on our fiscal health, now and in the future. (Priorities 4C, 4D)
 - 5. Efficiencies and flexibilities needed to support the student needs of the 2nd largest school district in the country. (Priorities 4C, 4D)
 - 6. Becoming the employer of choice by offering a competitively balanced total compensation package. (Priorities 4C, 5A, 5C)

II. Other proposals (All Units, as appropriate)

- A. Provide a three-year contract term for the respective term of the bargaining unit.
- B. In alignment with the student instructional calendar, extend the employee work year to include:
 - 1. Additional instructional days for students.
 - 2. Additional professional development days for staff (Priorities 1A, 1B, 1C, 4D)
- C. Modify Evaluation Procedures article to reflect District priorities of equity,

District's Proposed Initial Bargaining Proposals for Successor Agreements Commencing
July 1, 2024

For AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J and S

access, and improved outcomes for students. (Priorities 1C, 4D, 5D)

- D. Modify Transfers article to enhance District flexibility in making assignments.
Modify article to prioritize factors other than seniority when making decisions.
- E. Modify Tuition Reimbursement language to permit employees to use for certifications and other licenses and ensure consistency in implementation processes. (Priority 5D)
- F. Modify Hours and Overtime language to increase operational efficiencies and support for students through:
 - 1. Streamlined language on a) compensatory time b) flex time c) flexibilities d) pay for stand-by work on weekends and evenings
 - 2. Appropriately staffed schools during emergencies (fire, floods, earthquakes, etc.) and other exigent situations. (Priority 2A)
- G. Revise employee job duties to expand services to students, increase equity and efficiency and reduce redundancy amongst job classifications. (Priorities 5A, 5D)
- H. Update obsolete contract language, as necessary.

III. **United Teachers Los Angeles (UTLA) Proposals**

- A. Additional professional development and collaboration time for school staff to include:
 - 1. Increase the on-site obligation time to a minimum of one hour per day for elementary and secondary teachers and staff. (Priorities 1A, 1B, 1C, 5D)
- B. Address class size and staffing norms in strategic settings. (Priority 1A, 4C)
- C. Deploy and incentivize highly skilled practitioners with a focus on equity including:
 - 1. Increased micro-credential opportunities (Priority 1A, 1B, 5D)
 - 2. Additional stipends/differentials/tuition reimbursement based on:
 - a. Use of micro-credentials or licenses in specific settings (Priority 1A, 1B, 5D)
 - b. Recognition of special skills (Priority 1A, 1B, 5D)
 - c. Demonstration of success in key areas (Priority 1A, 1B, 5D)
 - d. Credentials in identified shortage instructional content areas (1A, 1B, 5D)
- D. Train staff in implementation of a common/coherent assessment to provide meaningful student progress data. (Priority 1A, 1B, 5B, 4A)
- E. Support students with disabilities receiving instruction in the SPED and general

District's Proposed Initial Bargaining Proposals for Successor Agreements Commencing
July 1, 2024

For AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J and S

- education settings through:
 1. Training on effective instructional strategies in an inclusive environment. (Priority 1A, 1B, 5B)
 2. The restructuring of Special Education service models to continue to improve services for students. (Priorities 1A, 1B, 1C, 4D)
 3. Increased onsite obligation time to facilitate ongoing professional development, instructional planning and collaboration (Priority 1A, 1B, 5B)
- F. Provide all students access to a high-quality arts instruction program through:
 1. Training on a modified arts instructional delivery model. (Priority 1A, 1B, 5B)
 2. Participation of Arts educators in District Internship program. (Priority 1A, 1B, 5B)
- G. Create alternative methods and eligibilities for staffing, transfers and supplemental assignments based on student needs and District priorities. (Priority 1A, 1C)
- H. Modify Evaluation Procedures and student discipline articles to reflect District priorities of equity, access, social-emotional skills and improved outcomes for students. (Priority 1A, 1C, 2C, 4D, 5D)
- I. Modify Early Education teacher job duties to support the developmental learning of pre-school students. (Priority 1A, 1C)

IV. SEIU - Unit B (Instructional Aides) Proposals

- A. Modify Transfer Procedures article to efficiently assign staff to early education centers. (Priority 1C)
- B. Modify paraprofessional job duties to support the developmental learning of pre-school students. (Priority 1C & 5D)
- C. Increase training opportunities to provide equity and access and improve services to students. (Priorities 4D)

V. SEIU - Unit C (Operations – Support Services) Proposals

- A. Modify Bus and Truck Operations Procedures article to improve operational efficiencies and safety. (Priority 4A, 5A)
- B. Modify Leaves of Absence Article to allow for increased notification to the District where appropriate. (Priority 1A, 2C, 5A)
- C. Modify Wages and Salary article as necessary to provide for an updated uniform allowance (Priority 5A)

District's Proposed Initial Bargaining Proposals for Successor Agreements Commencing
July 1, 2024

For AALA, UTLA, Health Benefits Committee and Units A, B, C, D, E, F, G, H, J and S

- D. Increase training opportunities to align with District modernization goals and greening of District sites. (Priorities 2A, 4B, 4D)

VI. SEIU - Unit F (Teacher Assistants) Proposals

- A. Modify Degree Track/Non-Degree Track article to require employees to a) take appropriate classes toward the attainment of a credential to meet the needs of our students b) take reduced amount of units each semester. (Priority 1A, 5D)

VII. SEIU - Unit G (Playground Aides) Proposals

- A. Update the Unit G Agreement to align with recent changes in the law. (Priority 5D)

VIII. Teamsters - Unit S (Classified Supervisors) Proposals

- A. Update the Food Services Addendum language with respect to recordkeeping. (Priority 2B, 5D)

Successor Bargaining Cycles:

- 2024 - 2027 – Units B, C, F, G and S
- 2025 - 2028 – Units A, E, H, J, AALA and UTLA
- 2026 - 2029 – Unit D
- 2026 – Health Benefits Committee

LAUSD STRATEGIC PLAN PRIORITIES

1A - Focus on consistent implementation of high-quality instruction to improve student outcomes

1B - Deliver well-rounded, inspiring educational and enrichment experiences to instill and maintain a love of learning

1C - Eliminate opportunity gaps, advance anti-racist instructional practices, and personalize learning for all students

2A - Design and sustain welcoming, safe, environmentally friendly, affirming, and inclusive learning environments

2B – Promote whole-child well-being through integrated health, nutrition and wellness services.

2C - Cultivate and model strong social-emotional skills

4A - Develop comprehensive data-driven systems to inform decision-making

4B - Modernize facilities and technological infrastructure

4C - Sustainably, equitably, and efficiently implement school and District budgets

4D - Make Los Angeles Unified the district of choice for families

5A - Effectively recruit and retain a highly qualified, diverse workforce committed to serving all students

5B - Provide competency-based, rigorous, and relevant professional learning

5C - Cultivate staff wellness through responsive and affirming practices

5D - Communicate and maintain consistent, high performance standards

District's Proposed Initial Bargaining Proposals for Successor Agreements Commencing
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The District reserves the right to add more proposals and sunshine them in accordance
with the Government Code.